

CV-23-004874 POLOUS, MICHAEL vs ROSS F CARROLL INC – Defendant's Motion to Leave to File Cross-Complaint – GRANTED, unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him. Code of Civ. Proc., § 428.50(b). The existing parties' proposed parties and claims are interconnected. Code Civ. Proc., § 428.10 permits a party to an action to file a cross complaint against other than parties to the action at any time before the court has set a date for trial but requires leave to be obtained from the court and to be granted in the interest of justice. This rule imposes discretion in the court. (City of Sacramento v. Superior Court in and for Sacramento County (1962), 205 Cal.App.2d 398.) Code Civ. Proc., § 426.50 also permits a party who fails to plead a cause of action whether through oversight, inadvertence, mistake, neglect, or other cause, to apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court shall grant leave after notice to the adverse party upon such terms as may be just if the moving party acted in good faith. Leave of the court to file a cross complaint is also required where a trial has been set. Loney v. Superior Court (Moneta) 1984) 160 Cal.App.3d 719). Trial has been set here for May 2027 and leave of the court is thus required to file a cross complaint. In Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, the Court held that a motion to file a cross complaint at any time during the course of an action must be granted unless bad faith of the moving party is demonstrated, where forfeiture would otherwise result. The court finds that no indication of bad faith exists here. A successful application must be supported by the proposed cross-complaint. Defendant's proposed cross complaint is attached to their application herein. Accordingly, Defendant's motion is granted. Defendants are hereby granted leave to join Mazingo Construction Inc. to this action within seven (7) days from the date of service of this order. Defendants shall submit a Proposed Order conforming to the Court's ruling no later than August 21, 2026.

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Code Civ. Proc., § 428.10 permits a party to an action to file a cross complaint against other than parties to the action at any time before the court has set a date for trial but requires leave to be obtained from the court and to be granted in the interest of justice. This rule imposes discretion in the court. (City of Sacramento v. Superior Court in and for Sacramento County (1962), 205 Cal.App.2d 398.)

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A successful application must be supported by the proposed cross-complaint. Defendant's proposed cross complaint is attached to their application herein.

Accordingly, Defendant's motion is granted.

Defendants are hereby granted leave to join Mozingo Construction Inc. to this action within seven (7) days from the date of service of this order.

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